IN THE SUPREME COURT OF THE STATE OF NEVADA

Appeal from the First Judicial District Court, The Honorable Judge James E. Wilson Presiding

Case No.: 82018

Fred Kraus, an individual registered to vote in Clark County, Nevada, DONALD J. TRUMP FOR PRESIDENT, INC.; the NEVADA REPUBLICAN PARTY,
Appellants,
v.
BARBARA CEGAVSKE, in her official capacity as Nevada Secretary of State, JOSEPH P. GLORIA, in his official capacity as Registrar of Voters for Clark County, Nevada, DEMOCRATIC NATIONAL COMMITTEE and NEVADA STATE DEMOCRATIC PARTY
Respondents.

EMERGENCY MOTION UNDER NRAP 27(e) FOR STAY AND TO EXPEDITE APPEAL

(Immediate Relief Required – 11/3/2020)

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As the Kofi Annan Foundation has stated, "for elections to have integrity, they must be conducted competently in a professional, non-partisan, and transparent manner, and just as importantly, voters must have confidence in their conduct."[1]

Petitioners seek narrow but important relief to ensure integrity: the ability to meaningfully observe the processing of mail ballots to ensure that those ballots are authenticated in the manner required by Nevada law—by humans, rather than artificial intelligence. Currently, Respondent Joseph Gloria, the Clark County Registrar, is prohibiting observers from witnessing the duplication of mail ballots, a phase of processing particularly susceptible to fraud through ballot manipulation, and unlawfully using a machine to verify signatures, even though Nevada law requires that verification be accomplished by a human. The vote-by-mail system currently being used in Clark County creates a process ripe for error or abuse thereby diluting the votes of Nevadans outside Clark County.

Because of the time critical nature of this appeal, Petitioners[2] move this Court on an expedited basis, pursuant to Nevada Rules of Appellate Procedure 2

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[1] Global Commission on Elections, Democracy and Security, Deepening Democracy: A Strategy for Improving the Integrity of Elections Worldwide, 2012 at 6.

[2] Appellants, Fred Kraus, Donald J. Trump for President, Inc., and the Nevada Republican Party, are the Petitioners below and are referred to herein as "Petitioners" or "Appellants."

and 8(a), to promptly prohibit the Registrar, while this appeal is pending, from (1) duplicating any further mail ballots unless observers can meaningfully observe the process and (2) authenticating ballots using artificial intelligence, and (3) to expedite this appeal.

I. FACTUAL BACKGROUND

Nevada law requires the Registrar to submit a plan for approval by April 15, 2020, to accommodate "members of the general public who observe the delivery, counting, handling and processing of ballots at a polling place, receiving center or central counting place."[3] The Registrar failed to do so until October 20, 2020, after complaints had been submitted to the Secretary of State.[4] Although the Secretary of State reviewed the plan and made suggestions,[5] she never approved it. Accordingly, the Registrar is currently operating under an unlawful observation plan.

In addition to being unlawful, the observation plan fails to ensure transparency and integrity as it does not allow the public to see election officials

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[3] NRS 293B.354(1).

[4] See Exhibit 1, which is Exhibit 9 from the Evidentiary Hearing containing all of the plans submitted to the Secretary of State and evidencing the fact that Clark County did not submit its plan until October 20, 2020.

[5] See Exhibit 2, which is Exhibit 8 from the Evidentiary Hearing indicating the Secretary of State's suggested plan revisions.

during key points of mail ballot processing. For instance, a mail ballot arrives at the Clark County Division of Elections in an envelope sealed and signed by the voter. It is then scanned several times by an Agilis machine that attempts to use artificial intelligence to match the signature on the envelope with that of the voter from other sources, such as the Department of Motor Vehicles (DMV). Although the Agilis machine requires signatures scanned at a minimum resolution of 200 D.P.I., the Registrar is ignoring that minimum as DMV signatures are scanned at less than 200 D.P.I. Upon alleged authentication of the signature, the ballot is transported to another Clark County facility, known as Greystone, where it is removed from its envelope by election officials.

Once the envelope is opened, the ballot is separated from the envelope and inspected to determine if any deficiencies would obstruct it from being fed through a tabulation machine. If any deficiencies exist, the ballot is hand duplicated by being placed in a green envelope for a "runner" to take into a small room known as the "MB Vault" and match with a blank ballot from the voter's precinct. The runner often goes into the room alone, sometimes even with a writing instrument, and closes the door. The runner then leaves the MB Vault with the voter's ballot and a blank ballot and takes them to duplicators who allegedly duplicate the voter's choices on the clean ballot, so it can be fed through a tabulation machine. This provides an opportunity for a careless or unscrupulous official to mark choices for

any unfilled elections or questions on the ballot, potentially substantially affecting down ballot races where there are often significant undervotes. Indeed, one observer has already witnessed a runner writing on or near a ballot.

II. PROCEDURAL BACKGROUND

Petitioners filed an Emergency Petition and Application for Temporary Restraining Order on October 23, 2020. The First Judicial District Court denied the Application for Temporary Retaining Order and set a hearing on the Emergency Petition for October 28, 2020. After a one-day hearing, the district court denied the Emergency Petition on October 29, 2020.[6]

III. LEGAL ARGUMENT

This Court determines whether to issue a stay pending disposition of an appeal, by considering the following factors: "(1) whether the object of the appeal will be defeated if the stay is denied, (2) whether appellant will suffer irreparable or serious injury if the stay is denied, (3) whether respondent will suffer irreparable or serious injury if the stay is granted, and (4) whether appellant is likely to prevail

[6] While the file stamp date on the Order is October 29, 2020 – it was not filed by the court until 5:44 pm that day. Consequently, it was not provided to the parties until the next judicial day – November 2, 2020 due to the Nevada Day holiday weekend.

on the merits in the appeal."[7] In exigent circumstances, the appellant need not first seek a stay from the district court.[8]

The Nevada Supreme Court, through Appellate Rule 2, may, "[o]n its own or a party's motion, . . . expedite its decision or for other good cause – suspend any provision of these Rules in a particular case and order proceedings as it directs, except as otherwise provided in Rule 26(b)." The Supreme Court has granted such relief and expedited the matter in many cases for good cause.[9] Good cause exists here because the injury to Clark County voters is completely irreparable as there is no way to remedy deprivation of the right to observe after the election and no way to match mail-in ballots if they are not preserved.

A. APPELLANTS ARE LIKELY TO SUCCEED ON THE MERITS

1. Election observers must be allowed to meaningfully observe

NRS 293B mandates that the public be given an opportunity to meaningfully observe "the *delivery*, *counting*, *handling* and *processing* of ballots at a *polling place*, *receiving center* or *central counting place*," so long as they "do not interfere" with the delivery, counting, and handling of ballots.[10] The statute

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[7] *Mikohn Gaming Corp. v. McCrea*, 120 Nev. 248, 251, 89 P.3d 36, 38 (2004).

[8] *See* Nev. R. App. P. 8(a).

[9] *See e.g. Bd. Of County Comm'rs v. Las Vegas Disc. Golf & Tennis, Inc.*, 110 Nev. 567, 568-69 (1994).

[10] *See* NRS 293B.330, .335, .353, and 354.

establishes a presumption of public access with a narrow exception to avoid public interference.

Furthermore, this observation must be meaningful. Both the plain and legal meaning of the term "observe" confirm this. Merriam Webster's Dictionary defines "observe" in relevant part as "*to watch carefully* especially with attention to details or behavior for the purpose of arriving at a judgment."[11] This common definition is consistent with the legal definition in Black's Law Dictionary: "To watch carefully."[12] "Observation" thus necessarily requires public on-lookers to be afforded *meaningful* review; to "watch carefully" and "with attention to details."

The registrar, however, fails to meet this standard. Instead, he restricts public observers to areas where they cannot fully observe and restricts them from areas where ballots are handled or reviewed and issues are resolved.[13] Indeed, observers explained at the district court hearing that they cannot see many of the election officials as they duplicate ballots. All these processes are necessary to the "counting, handling and processing of ballots" and thus must be open to

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[11] Merriam Webster's Online Dictionary, https://www.merriam-webster.com/dictionary/ observe (emphasis added). This definition is also consistent with the Election Observation Handbook (6th Ed.), published by the OSCE Office for Democratic Institutions and Human Rights.

[12] *See, e.g.*, OBSERVE, Black's Law Dictionary (11th ed. 2019).

[13] *See* **Exhibit 3 -** Diagram of Greystone, which is Exhibit 5 from the Evidentiary Hearing.

meaningful observation. To the extent that the Registrar claims that public health concerns arising from the COVID-19 pandemic must be considered, they must be harmonized with the observation requirements rather than displace them.

2. The use of the Agilis machine to authenticate signatures violates AB 4

The Registrar is using a defective signature matching computer system which violates the express requirements of AB 4.[14] Section 23 of AB 4 states that, with respect to each mail ballot received, "the clerk or an employee in the office of the clerk shall check the signature used for the mail ballot." Although Section 22 generally permits "mail ballots to be processed and counted by electronic means," any such electronic processing may not "conflict with the provisions of sections 2 to 27, inclusive, of this act." Nothing in AB 4 permits the use of a machine to check mail ballot signatures in lieu of the statutory requirement that this critically important task be conducted by "the clerk or an employee in the office of the clerk." Indeed, the Legislature's specific use of the words "or an employee in the office of the clerk" reinforces its statutory mandate that all signature verification

[14] This machine is only being used in Clark County and a similar device is not being used in any other county in this state which appears inconsistent with the Nevada Voters Bill of Rights which assure uniformity in the counting of votes. *See* NRS 293.2546(10).

must be conducted by a human being.[15]

Nevertheless, the Registrar has been using the Agilis machine to match signatures even though he acknowledges that the machine is only accurate with signatures over 200 D.P.I. and he is instead matching with DMV signatures, *none* of which are submitted above 200 dpi. Vote-by-mail voters in Clark County thus have an advantage over voters anywhere else in the state because many thousands of vote-by-mail ballots are never reviewed by a human being. The Clark County vote-by-mail process is subject to intolerable error and misconduct that will inevitably dilute lawful votes and disenfranchise Nevadans.

B. APPELLANTS BUT NOT RESPONDENTS WILL SUFFER IRREPARABLE HARM WITHOUT IMMIDEATE RELIEF

This appeal concerns the processing of an ongoing election. Most ballots will be processed in the coming days. Once a ballot is separated from its envelope, it can no longer be independently identified. Consequently, any ballots that have been incorrectly authenticated or modified in the duplication process will be unidentifiable and incurable, even during a recount. If immediate action is not

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[15] Election officials lack authority to undertake any action contrary to governing statute or regulation. *Kelly v. Murphy*, 79 Nev. 1 (1963). Any such unauthorized conduct is a "futile act," a term of art that means it is thus void as a matter of law. *Id.* at 4. Thus, as AB 4 expressly requires that mail ballot signatures be checked by "the clerk or an employee of the clerk," Registrar's use of the Agilis Ballot Packing Sorting System ("Agilis System") to check mail ballot signatures has been futile.

taken, Appellants will never have the opportunity to vindicate their rights. More troubling, Nevadans – and the rest of the Country – will be left wondering whether the results of the election are legitimate.

Respondents, however, will suffer no harm from a brief stay as it is their existing duty under law to allow for observation and properly count ballots.

C. THE APPEAL'S OBJECT WILL BE DEFEATED IF STAY IS DENIED

For the same reason that Appellants will suffer irreparable harm without a stay, the object of the appeal will be mooted without immediate relief.

CONCLUSION

For the forgoing reasons, Appellants respectfully request that this Court issue a stay and expedite its review of this appeal.

DATED this 3rd day of November, 2020.

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NRAP 27(e) CERTIFICATE

I hereby certify that this Emergency Motion for Relief Under NRAP 27(e) relies upon issues raised by Appellants in the District Court, and otherwise complies with the provisions of NRAP 27(e).

As set forth in the body of this motion, emergency relief is needed immediately given the current election or on or before November 3, 2020. The telephone numbers and office addresses of the attorneys for the parties are as follows:

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According to the attached certificate of service, all parties through their counsel of record have been served electronically though this Court's electronic filing system, and by email as indicated. Furthermore, the undersigned notified the parties by email on November 2, 2020 of the pending appeal and on November 3, 2020 of the emergency motion and the basis for the same. The undersigned's office also informed the Clerk of the emergency motion on the same day.

DATED this 3rd day of November, 2020.

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CERTIFICATE OF SERVICE

I hereby certify that the foregoing EMERGENCY MOTION FOR RELIEF UNDER NRAP 27(e) FOR STAY AND TO EXPEDITE APPEAL was filed electronically with the Nevada Supreme Court on the 3rd day of November, 2020. Electronic Service of the foregoing document shall be made in accordance with the Master Service List as follows:

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I further certify that I served a copy of this document by emailing a true and correct copy thereof due to the exigency of the requested relief:

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